

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GEORGIA

Complete Community Opposition How-To

This guide uses the Georgian terms and bodies you'll actually run into — the EIA and scoping under the Environmental Assessment Code, the environmental decision, the Aarhus Convention, the administrative courts, the Public Defender — and explains each in plain words the first time. Georgia's civic space has been under real pressure, so always check the current position and protect your people.

INTRODUCTION & FRAMEWORK

In the **Rioni Valley** of western Georgia, a handful of local residents did something a government called impossible: they stopped the **Namakhvani hydropower cascade**, a 424-megawatt scheme the state had declared essential to the country's energy independence. When preparatory works began, villagers pitched tents and refused to leave. Their protest grew into the "**Guardians of Rioni**," a movement that camped for months, drew tens of thousands into the streets of Kutaisi and Tbilisi, and would not yield. In 2021, the project was **suspended and the foreign developer withdrew**. A dam cascade the government had treated as a national priority was defeated — **not by a court, but by a valley that would not give up**.

The Guardians of Rioni stopped a dam cascade not through a court but through a valley that would not give up — and Georgia, a hybrid democracy, gives communities real if uneven tools alongside that resolve. It has elections, a fairly free press, and **courts**, and protest and petition are lawful. An **Environmental Assessment Code** aligned with European standards governs projects. And Georgia is a party to the **Aarhus Convention**, which guarantees access to environmental information, public participation, and access to justice. But these tools have real limits, and this guide states them plainly — and the sobering half is specific to Georgia, so plan for it. The institutions are **weaker and less reliable than a full democracy's**; permitting has at times been a **formality following a decision already made**; and civic space is **under real pressure**. Winning carried a heavy price: after it withdrew, the developer took Georgia to **international arbitration and won**, leaving the state facing a compensation award of hundreds of millions — a warning about the investor-state agreements many big projects rest on. And the very movement that saved the Rioni has since been smeared by the ruling party, which pushed a "foreign agents" law casting Western-funded organisations and protesters as hostile actors. Georgia shows both what people power can win and how the space to exercise it can narrow — so aim for what these levers can deliver, understanding both the openings and the risks.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Georgian project needs its **environmental decision** (from the environment ministry, under the Environmental Assessment Code), resting on an EIA with **scoping and public consultation**; it can be challenged in the **administrative courts** and through the **Aarhus** mechanisms; and — the Rioni lesson — it needs public acceptance it cannot manufacture. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and in Georgia, sustained public mobilisation has been the sharpest link of all.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If sustained community mobilisation is possible, that is Georgia's proven lever** — the Guardians of Rioni stopped a national-priority dam without a court.
- **If the EIA or its consultation was defective, the courts and Aarhus give you grounds** — though the courts are less reliable than a full democracy's.
- **If the state backs the project, plan for endurance and for the risks** — the arbitration price, the smearing of civil society, the pressure on protesters — and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the Aarhus access, the consultation, the courts — and **run every front at once**: the documents, the consultation, the courts, and above all the sustained public movement. That's how the Rioni was saved.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is issued by the **environment ministry** (the Ministry of Environmental Protection and Agriculture), under the **Environmental Assessment Code**, on the basis of an EIA with **scoping** and **public consultation**. Sectoral permits and the investment agreement come from the relevant bodies and the government. Municipalities have some land-use roles. And behind everything, Georgia's **Aarhus Convention** obligations bind the process to give the public information, participation, and access to justice. Know which decision you can contest, and aim there — while remembering the Rioni lesson that public acceptance is a gate the state cannot simply force.

How a Project Moves — and Where You Jump In

Scoping and the EIA. The project goes through **scoping**, then an EIA with **public consultation** — public notice, a chance to comment, a public hearing. *Your opening — and it arms every later step*: take part, put your objections on the record, and insist the participation is genuine, not a formality following a done deal.

The environmental decision and permits. The ministry issues the environmental decision; permits and the investment agreement follow. *Your opening*: a decision on a defective EIA, or a sham consultation, can be challenged in the courts and through Aarhus.

Construction and operation. *Your opening*: breaches of the conditions — and, as the Rioni showed, sustained public resistance on the ground.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — and, crucially in Georgia, **what investor-state agreement underpins it**, because that's what turned into a costly arbitration after Rioni. **What it still needs** — the environmental decision not final or under challenge, financing not closed: whatever's missing is the soft spot. **Who's paying** — the international lenders and investors, who have their own environmental and social standards and reputations.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry** issues the decision and can be pressed under Aarhus. The **administrative courts** review the legality of the decision — less reliably than a full democracy's, but a real arena. The **Aarhus Convention Compliance Committee** can find Georgia in breach of its participation and access obligations. The **Public Defender (Ombudsman)** takes complaints, including about the treatment of protesters. And Georgia's **community movements, its environmental organisations, and a fairly free press** are the forces that reach furthest — the combination that saved the Rioni.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether sustained mobilisation is possible, whether the EIA or consultation was defective, and how set the state is on the project.

What you do	Roughly works	How long	Cost/Risk	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the consultation	15–35%	during EIA	low	On record; conditions or a redo
Administrative court challenge	20–45%	1–3 yr	mod	Decision set aside (courts less reliable)
Aarhus Compliance Committee complaint	20–45%	1–3 yr	low	Georgia found in breach; pressure
Public Defender complaint	15–35%	months	low	Findings; protection of protesters
Sustained community mobilisation	35–60%	months–yr	rising risk	Project suspended (Rioni)
International lender/investor pressure	25–50%	months–yr	low	Financing withdrawn; project stalls
Everything together (mobilisation + law + world watching)	40–65%	1–3 yr	mod	Suspended, withdrawn, delayed
Everything together (state-backed, narrowing space)	20–45%	1–3 yr	mod–high	Delayed, conditioned, exposed

The lever that moves the needle most in Georgia is **sustained community mobilisation**, reinforced by the courts, the Aarhus mechanisms, and international lender pressure. The Rioni shows the ceiling (a national-priority dam stopped by a valley). The honest floor is a narrowing civic space, the arbitration risk, and courts you can't fully rely on — so pair mobilisation with the legal and international fronts, and protect your people.

On cost and risk: objecting, documenting, and organising are cheap, and Aarhus complaints are low-cost. But Georgia's civic space is under pressure — protesters and NGOs have been smeared and targeted — so weigh public action carefully, protect the vulnerable, and keep international attention on as a shield.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this decision, this flaw, this valley — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers, and the **investor-state agreement** underpinning it.

2. Where is it, and what does it touch? Get the footprint and lay it over your valley, river, homes, farmland, protected areas, and cultural heritage. **A treasured place and a community that depends on it — a valley, a river — is what fuels the sustained mobilisation Georgia rewards**, so map it and know it.

3. What stage is it at, and what's the next deadline? Is scoping or the EIA in consultation? Has the environmental decision issued (opening the courts)? These openings are time-bound.

4. What does it still need that it lacks? An environmental decision not final, permits not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? The valley's communities, neighbouring villages, environmental organisations, and — potentially — a national public that can be moved, as the Rioni moved the country.

What this looks like in real life. A community learns a dam or mine is planned that will transform its valley and river, with a consultation that feels like a formality. The five questions yield: a company and an investor-state agreement behind it; a threat to a whole valley the community loves (the fuel for mobilisation); an EIA in consultation or a decision just issued; a project still needing financing; and a community that can grow into a national movement. That's the Rioni pattern — build the sustained movement, and back it with the legal and international fronts.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the scoping and EIA, the environmental decision and its conditions, the permits, the investment agreement, the consultation record. Georgia's Aarhus-based access-to-information rights let you demand what isn't public. Then read the EIA hard for flaws — an understated impact on the valley or river, an ignored alternative, a geological or seismic risk brushed over, a consultation that was a formality (all live in the Rioni fight).

Layer two: the ground truth. Dated, located photographs and video of the valley, the river, the homes, the heritage — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of the place and its people. Lay the project over the valley, the river, the homes, and the protected and cultural sites, so both the harm and the human stake are undeniable. Walking into the courts, the Aarhus process, or the national press with the EIA, the decision, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The scoping and EIA, the environmental decision and conditions, the permits, the investment agreement, the consultation record** — from the environment ministry; force out the rest under the Aarhus access rules (8A).
- **Municipal and heritage records** — from the municipality and the heritage authorities.

- **Ownership and financing** — company and investor records, the international lenders, and the investor-state agreement.
- **The place-and-people map** — the valley, river, homes, and protected and cultural sites, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and in Georgia, sustained people power is the proven winner. Build your movement in four moves.

Start with a tight, rooted core. The residents of the valley most affected, the people who know the land and river, a few tireless organisers, and respected local figures — the Rioni began with a handful of villagers.

Build for endurance and scale. Georgia's lesson is that a movement that will not leave — that camps, that holds, that draws the nation in — can beat a national-priority project. Build a movement that can sustain a long presence and grow from a valley into a national cause, as the Guardians of Rioni did.

Bring in allies — environmental, legal, and international. Georgia's environmental organisations, lawyers who can run the court and Aarhus cases, and international networks that reach the lenders and keep a protective spotlight on. Hold gatherings where people see the evidence — the map of the project over their valley.

Build to last, and protect people. Georgian fights run for months and years, the civic space is under pressure, and winning can bring an arbitration price and official hostility. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and political risks. Take the smearing and pressure seriously, protect the vulnerable, and keep international attention on as a shield.

STEP 4: LEGAL CHALLENGES, AARHUS & PEOPLE POWER

Law gives Georgia real grounds — but the proven decisive lever is sustained mobilisation, so use the law to reinforce the movement, not replace it.

Object First — It Builds the Record

Everything downstream is stronger if you took part in the scoping and EIA consultation and put your objections on the record. The courts and the Aarhus process review the decision on that record, so your objections are the raw material of any challenge.

The Courts and the Aarhus Convention

If the environmental decision is granted, you can **challenge it in the administrative courts** by judicial review, on grounds of a defective EIA, a sham consultation, or an unlawful decision — bearing in mind the courts are less reliable than a full democracy's. Run a parallel front through the **Aarhus Convention**: because Georgia is a party, you can complain to the **Aarhus Convention Compliance Committee** that the state denied proper information, participation, or access to justice — a finding of breach brings real international pressure. And the **Public Defender (Ombudsman)** can take up both the environmental process and the treatment of protesters.

People Power — the Rioni Lever

The lever that actually stopped Namakhvani was **sustained, disciplined community mobilisation** — a valley that camped, held, and drew the nation in until the project was suspended and the developer withdrew. This is Georgia's sharpest tool. Build it to endure and to scale, back it with the legal and international fronts, and — because winning can bring backlash — protect your people and keep the international spotlight on.

The Honest Limits

Straight talk: mobilisation is powerful but carries rising risk as the civic space narrows; the courts are real but less reliable; and winning can trigger a costly arbitration and official hostility. So use the tools — the consultation, the courts, Aarhus, the Public Defender — but centre the sustained movement, reinforce it with international lender pressure, protect your people, and count a suspension, a withdrawal, delay, and exposure as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the project is bad" but *"the EIA brushed over the seismic and geological risk to the valley and its consultation was a formality — the decision is unlawful."*

A denied right becomes an Aarhus complaint. *"Georgia denied us the information and participation the Aarhus Convention guarantees — grounds for a compliance finding."*

The valley becomes a movement. *"This would drown the valley our families have lived in for generations — and we will not leave it."*

The agreement becomes a warning. *"This rests on an investor-state deal that could cost the country dearly — the public deserves to know."*

Match it to the venue: the objections to the ministry; the EIA flaws to the courts; the denied participation to the Aarhus Committee; the valley and its people to the national press and the movement.

STEP 5: MEDIA STRATEGY

In Georgia, public attention is the oxygen of the mobilisation that wins — and, as the civic space narrows, a protection. A fairly free press and a movement that can capture the national imagination make the media front central.

Lead with the place and the people. Not "the EIA was procedurally deficient" but "the valley our families have lived in for generations — drowned for a project decided over our heads." Use your strongest material: dated photographs, the map of the project over the valley, community voices, and the human story that moved a nation for the Rioni.

Work several audiences at once. Local and national press build the movement; international media and networks reach the lenders and keep a protective spotlight on, especially as the state pressures civil society. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and feed the "hostile actor" smear. And protect people — weigh public action carefully, keep international attention on, and let the

community lead its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Aarhus access-to-information request (to the ministry).

Subject: Request for environmental information — [project].

"Under the Aarhus Convention and Georgian law, we, residents of [place], request the scoping and EIA, the environmental decision and its conditions, the permits, and the consultation record for [project] at [location]. [Contact.]"

8B — Objection in the consultation.

Subject: Objection — consultation on [project].

"We, residents of [place], object to the environmental decision for [project]: [the EIA brushed over the seismic/geological risk to our valley; the consultation was a formality; alternatives were ignored]. We ask that the decision be refused. [Attach evidence.]"

8C — To a lawyer / environmental organisation (courts & Aarhus).

Subject: Challenge and Aarhus complaint — [project].

"Our community faces [project], approved on a defective EIA and a sham consultation. We've gathered [the EIA, the decision, photographs]. We ask for your help to challenge it in the administrative courts and to complain to the Aarhus Compliance Committee, working as partners. [Contact and evidence summary.]"

8D — To the Aarhus Convention Compliance Committee.

Subject: Communication concerning Georgia — [project].

"We report that Georgia, in [project] at [location], denied us the environmental information, public participation, and access to justice the Aarhus Convention requires: [specifics]. [Attach evidence.]"

8E — To the Public Defender (Ombudsman).

Subject: Complaint — [project] and [treatment of protesters].

"We ask you to examine the flawed environmental process for [project] and [any smearing or pressure against community members and protesters]. [Attach evidence.]"

8F — To an international lender or investor.

Subject: Environmental, legal, and reputational risk in [project].

"We understand your institution may be financing [project] at [location], approved on a defective EIA against strong community opposition. We ask you to weigh this against your own environmental and social standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [valley / river] from [project].

"For generations the people of [place] have lived in [the valley] at [location]. Now [project] threatens to drown it — decided over our heads. As the Guardians of Rioni showed, a valley that stands together can be heard. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can protect our valley — here's how.

"[Project] threatens [our valley / river]. In the Rioni Valley, a handful of neighbours grew into a movement that stopped a national-priority dam. With sustained mobilisation, the courts, Aarhus, and international attention behind us, we have a real chance. Please join us — and let's protect one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and the place it threatens — your valley, your river.** A treasured place is what fuels the mobilisation Georgia rewards.
2. **Object in the consultation (8B), and start building the movement (8H).**
3. **Request the documents (8A) under Aarhus, and read the EIA for flaws and a sham consultation.**
4. **Photograph everything, with dates and places.**
5. **Get a lawyer for the courts and an Aarhus complaint (8C/8D), and reach international lenders (8F).**
6. **Build the sustained movement and keep international attention on — as protection and pressure.** The Rioni was saved this way.

Even lean, those six centre the movement, build the record, open the Aarhus and international fronts, and protect your people.

WHEN THE SYSTEM IS TILTED

Georgia's tools are real, but the field is tilted and the civic space is narrowing, so plan for it.

When the state backs the project. A national-priority project is hard to stop by law alone. Centre the sustained movement — Georgia's proven lever — and back it with the courts, Aarhus, and international lender pressure.

When the courts are unreliable. They may not deliver. Don't stake everything on them; use them alongside the movement, the Aarhus mechanisms, and the international front.

When winning brings a price. The Rioni win triggered a costly arbitration and a backlash against civil society. Expose the investor-state risk publicly, and prepare for the state to smear the movement — keep it disciplined, accurate, and internationally visible.

When civil society is targeted. The "foreign agents" law and smearing are real. Protect the vulnerable, keep the movement's message about the valley and the law (not politics), and keep the international spotlight on as a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Georgia has real problems with the capture of decisions by powerful interests and opaque investor deals, so this matters.

How to spot it. Environmental decisions against the evidence; permitting as a formality following a done deal; opaque investor-state agreements; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **State Audit Office** examines public money. The **anti-corruption bodies and prosecutors** handle graft. The **Public Defender** takes complaints. The **courts** can set aside a tainted decision, and the **Aarhus Committee** can find the process unlawful. And Georgia's **investigative press** has exposed captured deals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law and Aarhus required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the audit and anti-corruption bodies, the Public Defender, and trusted journalists rather than making accusations you can't back — especially as the state may cast you as a hostile actor. Pair the exposure with the legal challenge and the movement.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the threatened valley fuels the movement; the movement is the muscle; the courts and Aarhus press the legal case; the international media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and the place it threatens; object in the consultation; request the records under Aarhus; photograph the baseline; begin building the movement and reach a lawyer.

In the thick of it (months–years): challenge the decision in the courts and complain to the Aarhus Committee; grow the sustained mobilisation from a valley into a national cause; press the international lenders; open the media front.

The long haul (months–years): carry the litigation and the Aarhus case; sustain the movement and the international spotlight; hold the line for a suspension, a withdrawal, delay, or exposure — and protect your people, and expose the investor-state risk, throughout.

FINAL ASSESSMENT

Stopping a destructive project in Georgia can be done — a handful of villagers in the Rioni Valley grew into a movement that stopped a 424-megawatt dam cascade the state called essential. Hold both truths. Georgia's tools are real: an EIA system with consultation under a European-aligned code; the Aarhus Convention's rights to information, participation, and justice; administrative courts; a Public Defender; and, above all, a proven capacity for people power. And the constraints are real: courts you can't fully rely on, a narrowing civic space, the smearing of activists, and the arbitration price that can follow a win.

Here's the discipline that wins. Find the treasured place and the flaw in the EIA, and pry loose the record under Aarhus. Object in the consultation, and challenge the decision in the courts and before the Aarhus Committee. But centre the thing that actually won the Rioni — a sustained, disciplined community movement that grows from a valley into a national cause — and back it with international lender pressure and a protective spotlight. Expose the investor-state risk, protect your people against the backlash, and count a suspension, a withdrawal, delay, and exposure as wins. That's what the Guardians of Rioni did — a valley that would not leave, backed by the law and the world's attention. So can you.